

****27.01.2025****

****Sanction for Violation of GDPR****

The National Supervisory Authority for Personal Data Processing completed, in December 2024, an investigation into the operator Orange Romania SA and found a violation of the provisions of Article 12 paragraphs (3) and (4), in conjunction with Article 17 of Regulation (EU) 2016/679, as well as Articles 5, 6, and 7 of Regulation (EU) 2016/679. As such, the operator was sanctioned with two fines totaling 199,020 lei, equivalent to 40,000 EURO, as follows:

- A fine of 99,510 lei (equivalent to 20,000 EURO) for violating the provisions of Article 12 paragraphs (3) and (4), in conjunction with Article 17 of Regulation (EU) 2016/679;
- A fine of 99,510 lei (equivalent to 20,000 EURO) for violating the provisions of Articles 5, 6, and 7 of Regulation (EU) 2016/679.

The investigation was initiated to verify the manner of addressing the exercise of the right to erasure. During the investigation, it was found that, after an unsuccessful attempt to subscribe to the mobile phone services offered by the operator, a request was made to delete all personal data. Throughout the correspondence, the operator requested several personal data and did not provide complete and adequate responses to the received requests.

During the investigation, it was revealed that Orange Romania SA did not properly manage the requests for the deletion of personal data, thus violating the provisions of Article 12 paragraphs (3) and (4), in conjunction with Article 17 of Regulation (EU) 2016/679. At the same time, it was found that the operator collected and stored excessive data, including scanned copies of certain documents, even though the personal data were no longer necessary for the purpose of identification related to the conclusion of a subscription contract. As such, the provisions of Articles 5, 6, and 7 of Regulation (EU) 2016/679 were violated.

At the same time, during the investigation, the operator was also subjected to the following corrective measures:

- To provide a complete response to the request for the deletion of their personal data, in accordance with the applicable legal provisions;
- To ensure compliance with Regulation (EU) 2016/679 in the operations of personal data processing, by adopting the necessary technical and organizational measures, including proper training of the designated personnel for this purpose, so that the operator is capable of analyzing, correctly addressing, and appropriately responding to requests from data subjects exercising their rights, within the deadlines and according to the conditions provided by Articles 12-23 of Regulation (EU) 2016/679, with clear, transparent, and accessible information for data subjects regarding the mechanisms for exercising their rights;
- To remove from the database the personal data and identity documents of the affected person, collected during the failed subscription procedure to the offered services;
- To ensure compliance with Regulation (EU) 2016/679 in the operations of personal data processing, so that the operator clearly establishes the legal basis for the collection of personal data in relation to each purpose of processing, within the steps preceding the conclusion of a subscription contract for its services, so that personal data and identity documents are not collected and subsequently stored excessively and illegally except in compliance with applicable legislation, ensuring clear, transparent, and accessible information for data subjects, in accordance with the provisions of Articles 5-7 and Articles 12-14 of Regulation (EU) 2016/679.

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****A.N.S.P.D.C.P.****